

23NWCV01065 23NWCV01065

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C07%2F09%2F2026

Source SHA-256: 91186d5fce2fc7a5796e30dfc5b5c1335b8acd32adb4748a77d66b69e0f1039e

Case Number: 23NWCV01065 Hearing Date: July 9, 2026 Dept: P

MARIA DE LOS ANGELES CORDOVA v. SILVIO MANUEL HERNANDEZ

CASE

NO.: 23NWCV01065

HEARING: 07/09/2026 @

9:30 AM

#10

TENTATIVE ORDER

I.

Plaintiff Maria de Los Angeles Cordova's

motion to enforce settlement is GRANTED IN PART CONTINUED IN PART.

II.

This motion is CONTINUED to Friday, July

31, 2026 at 9:30 AM as to the issue of who the parties seek to appoint as

referee. The parties are instructed to submit briefing or declarations with the

name of a referee by July 27, 2026.

III.

Plaintiff's request for costs is DENIED

without prejudice.

Moving party to give notice.

Plaintiff Maria de Los Angeles Cordova (Plaintiff) moves to enforce a settlement agreement between the parties and to appoint a partition referee in accordance with the agreement.

Background

On April 6, 2023, Plaintiff filed this partition action against Defendant Silvio Manuel Hernandez (Defendant) and all persons presently unknown claiming any interest in the real property at issue, identified as Does 1 through 10. The complaint alleges Plaintiff and Defendant each own a one-half interest as joint tenants in the real property at issue is commonly known as 10005 Birchdale Avenue, Downey, California 90240 (Assessor's Parcel No. 6363-013-010) (Subject Property). (Complaint, ¶¶ 2, 10.) The complaint asserts a single cause of action for partition of real property by sale.

On July 11, 2025, Plaintiff and Defendant appeared for trial and entered into a settlement orally before the Court.

Legal Standard

Code of Civil Procedure section 664.6, subdivision (a) provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." "A trial court, when ruling on a section 664.6 motion, acts as a trier of fact." (Skulnick v. Roberts Express, Inc. (1992) 2 Cal.App.4th 884, 889, citation omitted.)

Discussion

Plaintiff moves to enforce a settlement agreement entered into between the parties and to appoint a partition referee. This motion is unopposed.

Plaintiff moves pursuant to a settlement agreement reached by the parties orally in Court on June 11, 2025. (6/11/2025 Settlement). The 6/11/2025 Settlement provides that "[t]his is a judicially supervised settlement, and it is enforceable under 664.6 of the Code of Civil Procedure."

(6/11/2025 Settlement.)

The 6/11/2025 Settlement provides that “[t]he Plaintiff will continue to make full home loan payments to Wells Fargo Bank for the months of June, July, and August 2025” and “[f]or the months of September, October, and November 2025, the Plaintiff and Defendant are to pay 1/2 each (home loan payment) to Wells Fargo Bank.” (6/11/2025 Settlement.) Additionally, “[o]n or before December 15, 2025, the Defendant will refinance the property and pay the Plaintiff the sum of \$325,000.00.” (6/11/2025 Settlement.) The agreement provides that “[i]f the Defendant fails to make payments or fails to refinance the property, the property will immediately be listed by sale.” (6/11/2025 Settlement.) Lastly, the agreement states that after the Subject Property is sold, “the first \$140,000.00 of the sales proceeds will be given to the Plaintiff, and the balance to be shared equally.” (6/11/2025 Settlement.)

Plaintiff argues that Defendant defaulted on the 6/11/2025 Settlement. Plaintiff puts forth a declaration stating that she made the loan payments as required but Defendant failed to make his payments for September, October, and November of 2025. (Cordova Decl., ¶¶ 3-4.) Plaintiff also explains that “I signed a listing agreement with Sofia Paczynski, the realtor chosen by defendant, in early November, 2025. Although defendant also signed the listing agreement, he then cancelled it unilaterally and insisted on using a different realtor, Abigail Vargas. I then signed a listing agreement with Ms. Vargas, but defendant cancelled open houses on several occasions in late November 2025. (Cordova Decl., ¶ 5.) Additionally, Plaintiff states that Defendant did not make any loan payments between December of 2025 and February of 2026 and despite stating that he would buy out Plaintiff’s interest, Defendant failed to complete the refinance process or pay the March of 2026 loan payment. (Cordova Decl., ¶¶ 7-9.) Plaintiff includes the loan statements. (Cordova Decl., Exhs. 15-20, 22, 23.) Plaintiff contends that they modified the agreement to include reimbursement for the amounts Plaintiff paid to prevent defaulting on the loan and that she signed a grant deed in accordance with the new agreement. (Cordova Decl., ¶ 10.)

Here, Plaintiff establishes that Defendant failed to make loan payments or to refinance the Subject Property by December 15, 2025. However, to the extent that Plaintiff argues about a modified agreement, this is outside of the scope of the 6/11/2025 Settlement. As stated above, the Court has jurisdiction to enforce the terms of the 6/11/2025 Settlement. The 6/11/2025 Settlement provided that Plaintiff will prepare and circulate a formal

settlement agreement. Plaintiff's counsel Michael J. Eyre puts forth an expanded settlement agreement which he acknowledges Defendant "never signed nor returned." (Eyre Decl., ¶ 3.)

The Court is without jurisdiction to enforce the expanded settlement agreement. The 6/11/2025 Agreement notes that "[a]ll parties acknowledge and agree to the settlement terms as stated in open court." (6/11/2025 Settlement.) There is no evidence that all the terms listed in the subsequent agreement were agreed upon in open court.

The Court therefore grants relief as provided for in the 6/11/2025 Settlement: "If the Defendant fails to make payments or fails to refinance the property, the property will immediately be listed by sale." (6/11/2025 Settlement.) Any other requests, including as to costs are not provided for in the 6/11/2025 Settlement and thus outside the scope of this motion.

The Court finds Plaintiff's request for a referee warranted to conduct the sale of the Subject Property. (See Code Civ. Proc., § 873.101.) However, the Court continues this motion as to the request for a referee so that the parties can submit a name of the individual to be appointed as referee.

Accordingly, Plaintiff's motion to enforce settlement is GRANTED IN PART and CONTINUED IN PART. This motion is continued to Friday, July 31, 2026 at 9:30 AM as to the issue of who the parties seek to appoint as referee. The parties are instructed to submit briefing or declarations with the name of a referee by July 27, 2026.

Plaintiff's request for costs is DENIED without prejudice.